IN THE NATIONAL COMPANY LAW TRIBUNAL: CHANDIGARH
(*through* Hybrid Mode)
COURT-I

Item No. 102

CA No. 171/2024
and
CP(CAA) No. 6/Chd/Hry/2024
(2nd Motion)

IN THE MATTER OF:

Marvel Tea Pvt. Ltd. …Petitioner

And

Marvel Ltd. …Respondent

Under Section: 230-232, CA 2013, Rule 11 of NCLT

Order delivered on 20.09.2024

CORAM:

SH. UMESH KUMAR SHUKLA
HON'BLE MEMBER (T)

SH. HARNAM SINGH THAKUR
HON'BLE MEMBER (J)

PRESENT:

For the Petitioner: Mr. Naresh Kumar, Advocate

ORDER

Reports of the Regional Director, Official Liquidator, and Income Tax Department have been filed vide Diary Nos. 00637/1 dated 09.07.2024, 00637/3 dated 10.07.2024 and 00637/4 dated 23.07.2024 respectively. All are taken on record. Affidavit providing publication of notice has been filed vide Diary No. 00637/2 dated 11.07.2024, Affidavit confirming no complaint against the scheme has been vide Diary No. 00637/5 dated 24.07.2024, Rejoinder to the report of Regional Director has been filed vide Diary No. 00637/6 dated 24.07.2024. All are also taken on record. It is mentioned in Para No. 3 of the application that in the subsequent filing of the petition,

certain material developments have taken place in the applicant companies and transferee company in their respective meeting held on 31.07.2024 for reviewing the ongoing amalgamation before this Authority and decided to withdraw the Joint Company Petition No. CP(CAA) No. 6/Chd/Hry/2024 and the aforesaid scheme of amalgamation. Let the matter be listed on 03.10.2024.

Sd/- Sd/-

(UMESH KUMAR SHUKLA)
MEMBER (T)

(HARNAM SINGH THAKUR)
MEMBER (J)

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